

24VECV01046 24VECV01046

County: los-angeles

Division: Civil Law and Motion

Department: 107

Hearing date: 2026-06-24

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Case Number: 24VECV01046 Hearing Date: June 24, 2026 Dept: 107

SUPERIOR COURT

OF THE STATE OF CALIFORNIA

COUNTY OF LOS

ANGELES

NORTHWEST

DISTRICT

Rowena

Lund,

Plaintiff,

v.

Kambiz

Kamangar, et al.

Defendants.

Case Number Department

COURT'S [TENTATIVE]

ORDER RE:

Motion for Summary Judgment

[THE FOLLOWING IS A TENTATIVE RULING IN THE ABOVE CASE]:

Deny

I.

BACKGROUND

On

or about October 19, 2019, Plaintiff Rowena Lund ("Plaintiff") engaged

Defendants Agoura Advanced Dentistry, Kambiz Kamangar, DDS ("Dr. Kamangar"),

and Does 1 through 100 to perform a root canal on Plaintiff's second

upper-right molar. (Complaint ¶ 5.) Dr. Kamangar and staff at Agoura Advanced Dentistry

failed to perform the root canal procedure before placing a crown on

Plaintiff's tooth. (Complaint ¶ 6.) Plaintiff manifested an injury on or around

March 10, 2023, when she experienced pain, swelling, and drainage in the upper

right quadrant of her mouth. (Complaint ¶ 7.)

On March 5, 2024,

Plaintiff filed a complaint against Defendants Agoura Advanced Dentistry, Dr. Kamangar, and Does 1

through 100, alleging a medical negligence cause of action.

On

July 29, 2024, Plaintiff filed an amendment to complaint identifying Doe 1 as

Faraz Farahnik, DDS. (Amendment to Complaint filed 07/29/24).

On

January 20, 2026, Defendant Faraz Farahnik, DDS ("Defendant") filed a motion

for judgment on the pleadings (the "Motion for Judgment on the Pleadings"). On

March 2, 2026, the court denied the Motion for Judgment on the Pleadings.

(03/02/26 Minute Order p. 7.)

On

April 22, 2026, Defendant filed a motion for summary judgment (the "Motion").

On June 1, 2026, Plaintiff filed an opposition. On June 12, 2026, Defendant

filed a reply.

II.

PLAINTIFF'S

EVIDENTIARY OBJECTIONS

Plaintiff's

separate statement contains objections to Defendant's evidence. (See

Plaintiff's Separate Statement Nos. 8-15, 17-19, 21-24, 26.)

California

Rules of Court, rule 3.1354(a) states:

Unless otherwise

excused by the court on a showing of good cause, all written objections to evidence in support of or in opposition to a motion for summary judgment or summary adjudication must be served and filed at the same time as the objecting party's opposition or reply papers are served and filed.

California

Rules of Court, rule 3.1354(b) states, in relevant part:

All written objections

to evidence must be served and filed separately from the other papers in support of or in opposition to the motion. Objections to specific evidence must be referenced by the objection number in the right column of a separate statement in opposition or reply to a motion, but the objections must not be restated or reargued in the separate statement. Each written objection must be numbered consecutively and must:

(1) Identify the name

of the document in which the specific material objected to is located;

(2) State the exhibit,

title, page, and line number of the material objected to;

(3) Quote or set forth

the objectionable statement or material; and

(4) State the grounds

for each objection to that statement or material.

California

Rules of Court, rule 3.1354(b) further sets forth the required format for

objections. California Rules of Court, rule 3.1354(c) requires the party

submitting the objections to submit a proposed order.

Written

objections must be served and filed separately from other papers. (Cal. Rules

of Court, rule 3.1354(b).) It is improper for Plaintiff to incorporate written

objections into the separate statement without serving and filing the written

objections separately from other papers. Plaintiff also submitted no proposed

order for the objections. Thus, the court does not consider Plaintiff's

objections.

II.

TIMELINESS

A

motion for summary judgment "may be made at any time after 60 days have elapsed

since the general appearance in the action or proceeding of each party against

whom the motion is directed or at any earlier time after the general appearance

that the court, with or without notice and upon good cause shown, may direct."

(Code Civ. Proc., § 437c, subd. (a)(1).) "The motion shall be heard no later than

30 days before the date of trial, unless the court for good cause orders

otherwise. The filing of the motion shall not extend the time within which a

party must otherwise file a responsive pleading." (Code Civ. Proc., § 437c, subd.

(a)(3).)

2

Per Code of Civil

Procedure section 437c, subdivisions (a)(2), (b)(2) and (4):

2

Notice of the motion and supporting

papers shall be served on all other parties to the action at least 81 days before the time appointed for hearing.

If the notice is served by mail, the required 81-day period

of notice shall be increased by 5 days if the place of address is within the

State of California, 10 days if the place of address is outside the State of

California but within the United States, and 20 days if the place of address is

outside the United States. If the notice is served by facsimile transmission,

express mail, or another method of delivery providing for overnight delivery,

the required 81-day period of notice

shall be increased by two court days . . . An

opposition to the motion shall be served and filed not less than 20 days

preceding the noticed or continued date of hearing, unless the court for good cause orders otherwise . . . A reply to the opposition shall be served and filed by the moving party not less than 11 days preceding the noticed or continued date of hearing, unless the court for good cause orders otherwise.

The parties stipulated to waive the

81-day notice requirement and set the Motion for hearing on June 24, 2026. (Ex

Parte filed 04/16/26 Ex. A pdf pp. 9-11.) The opposition and reply were timely

filed.

III.

LEGAL

STANDARD

“A

party may move for summary judgment in an action or proceeding if it is

contended that the action has no merit or that there is no defense to the

action or proceeding.” (Code Civ. Proc., § 437c, subd. (a)(1).)

“Code

of Civil Procedure section 437c, subdivision (c), requires the trial

judge to grant summary judgment if all the evidence submitted, and ‘all

inferences reasonably deducible from the evidence’ and uncontradicted by other

inferences or evidence, show that there is no triable issue as to any material

fact and that the moving party is entitled to a judgment as a matter of law.” (Adler

v. Manor Healthcare Corp. (1992) 7 Cal.App.4th 1110, 1119, original

italics)

“A

defendant moving for summary judgment has the initial burden of presenting

evidence that a cause of action lacks merit because the plaintiff cannot

establish an element of the cause of action or there is a complete defense.” (Gordon

v. Continental Casualty Company (“Gordon”) (2024) 107 Cal.App.5th

89, 99.) “When the defendant moves for summary judgment, in those circumstances

in which the plaintiff would have the burden of proof by a preponderance of the

evidence, the defendant must present evidence that would preclude a reasonable

trier of fact from finding that it was more likely than not that the material

fact was true [citation], or the defendant must establish that an element of

the claim cannot be established, by presenting evidence that the plaintiff

‘does not possess and cannot reasonably obtain, needed evidence.’” (Padilla

v. Rodas (2008) 160 Cal.App.4th 742, 747.)²

“If

the defendant satisfies this initial burden, the burden shifts to the plaintiff

to present evidence demonstrating there is a triable issue of material fact.” (Gordon,

supra, 107 Cal.App.5th at pp. 99-100.) To establish a triable issue of

material fact, the party opposing the motion “must produce substantial responsive evidence[.]” (Sangster v. Paetkau (1998) 68 Cal.App.4th 151, 162-163.) Courts “liberally construe the evidence in support of the party opposing summary judgment and resolve doubts concerning the evidence in favor of that party.” (Gordon, supra, 107 Cal.App.5th at p. 99.)

I.

DISCUSSION

Motion

for Judgment on the Pleadings:

In

opposition, Plaintiff indicates the Motion is a motion to reconsider the Motion for Judgment on the Pleadings, which the court denied. (Opposition p. 1.)

In

reply, Defendant argues a motion for summary judgment is not a motion for reconsideration because “[t]he dispositive evidence on the statute of limitations issue is the demand letter sent by Plaintiff’s counsel on November 16, 2023, which was not considered on the prior motion but is fully admissible as evidence in this MSJ.” (Reply p. 2.)

The

present Motion is not an improper motion for reconsideration. A motion for

judgment on the pleadings tests the pleadings. (Hunt v. County of Shasta (1990)

225 Cal.App.3d 432, 440.) A motion

for summary judgment is an evidentiary motion. (Gordon, supra, 107

Cal.App.5th at pp. 99-100.) The court is aware of no authority suggesting a

party may not move for summary judgment on an issue previously raised in a

motion for judgment on the pleadings.

Statute

of Limitations:

Defendant

argues this matter is barred by the statute of limitations because Plaintiff

was not ignorant of Defendant's identity when Plaintiff filed the complaint.

(Motion pp. 5-8.) Defendant cites a demand letter addressed to The Dentists

Insurance Company that references Defendant and his participation in the

complaint's alleged negligent acts. (Motion p. 7.) Defendant also cites

Plaintiff's discovery responses and argues the responses "show Plaintiff

purposefully elected not to join [Defendant] as a defendant—not because of any

ignorance of facts bearing on [Defendant] alleged liability—and to proceed

against Dr. Kamangar only as the owner/employer of the dental practice."

(Motion p. 9.)

In

opposition, Plaintiff argues the statute of limitations does not bar this action because she was ignorant of Defendant's status as an independent contractor when she filed the complaint. (Opposition pp. 3-5.)

In

reply, Defendant argues "Plaintiff does not claim that she discovered any new facts concerning [Defendant's] involvement and liability for her alleged injuries" and "[a]ny inquiry into [Defendant's] employment relationship is irrelevant. [Defendant's] employment classification has no bearing on his personal liability, which exists regardless of whether he was an employee or independent contractor. The only relevance of that distinction pertains to whether Dr. Kamangar could also be held vicariously liable." (Reply p. 4.)

Code

of Civil Procedure section 340.5 states, in relevant part:

In an action for

injury or death against a health care provider based upon such person's alleged professional negligence, the time for the commencement of action shall be three years after the date of injury or one year after the plaintiff discovers, or through the use of reasonable diligence should have discovered, the injury, whichever occurs first. In no event

shall the time for commencement of legal action exceed three years unless

tolled for any of the following: (1) upon proof of fraud, (2) intentional

concealment, or (3) the presence of a foreign body, which has no therapeutic or

diagnostic purpose or effect, in the person of the injured person.

Code of Civil

Procedure section 474 states, in relevant part:

When the plaintiff is

ignorant of the name of a defendant, he must state that fact in the complaint,

or the affidavit if the action is commenced by affidavit, and such defendant

may be designated in any pleading or proceeding by any name, and when his true

name is discovered, the pleading or proceeding must be amended accordingly . .

.

“The

words ‘ignorant of the name of a defendant’ are construed broadly to include

other kinds of ignorance which explain the failure to name a person as a

defendant until sometime later. Even a person whose identity was known to the

plaintiff when the action was filed may be brought in under section 474 as a

‘Doe’ defendant if the plaintiff was initially unaware of that person’s true

relationship to the injuries upon which the action was based [citation]; or if

a change in law has indicated that persons not originally joined might also be

held liable.” (Miller v. Thomas (“Miller”) (1971) 121

Cal.App.3d 440, 444-445.) “But in each of the cases allowing late joinder of known persons under section 474, there has been some showing that at the time the original complaint was filed the plaintiff was ignorant of something having a bearing upon the liability of the newly-summoned party.” (Id. at p. 445.)

Defendant submits a demand letter from Plaintiff’s counsel, Kevin P. Flahavan, sent to The Dentists Insurance Company where Plaintiff’s counsel referenced Defendant’s failure to complete Plaintiff’s procedure. (Defendant Ex. C pdf p. 11.) The letter is dated November 16, 2023. (Defendant Ex. C pdf p. 11.) Plaintiff filed the complaint about four months later, on March 5, 2024. The court concludes the demand letter is sufficient to meet Defendant’s initial burden of showing Plaintiff was not ignorant of Defendant’s identity when she filed the complaint.

The main dispute here concerns whether Plaintiff’s omitting Defendant from the original complaint was a tactical decision to seek to hold only Dr. Kamangar liable, such that this matter falls under Miller, supra, 121 Cal.App.3d, or whether Plaintiff’s subsequently learning Defendant was an independent contractor constitutes knowledge concerning Defendant’s legal capacity, such that this matter falls under Parker v. Robert E. McKee, Inc. (“Parker”)

(1992) 3 Cal.4th 512.

In

Miller, *supra*, 121 Cal.App.3d at p. 442, the plaintiff Donna L. Miller

was in an automobile accident. Jerry Patrick Thomas was driving the other

automobile. (Id.) After the accident, Thomas approached Miller and told

her he was an undercover narcotics officer for the Los Angeles City Police

Department and the vehicle he was driving was an unmarked police vehicle. (Id.)

Miller told her attorney Thomas was the driver of the other vehicle and that he

was an undercover narcotics officer for the City of Los Angeles. (Id.)

Miller's counsel filed a complaint naming as defendants the City of Los

Angeles, Doe 1, Doe 2, Doe 3, Doe 4, Doe 5, Doe 6, Doe 7, and Does 8 through

50. (Id.) Miller substituted multiple counsels. (Id. at p. 443.)

Miller's counsel later amended the complaint, naming Thomas as Doe 1. (Id.)

Thomas alleged as an affirmative defense that the action was barred by Code of

Civil Procedure section 340, subdivision (3) and moved for summary judgment on

the ground the action was barred by the statute of limitations. (Id.)

Thomas relied on Miller's responses to requests for admission. (Id.)

Miller submitted declarations by Miller and Miller's three counsels. (Id.)

The

Court of Appeal explained that Code of Civil Procedure section 474 authorizes

fictitious names, and “ignorant of the name of a defendant” has been “construed broadly to include other kinds of ignorance which explain the failure to name a person as a defendant until sometime later.” (Miller, supra, 121 Cal.App.3d at p. 444.) The Court stated “[b]ut in each of the cases allowing late joinder of known persons under section 474, there has been some showing that at the time the original complaint was filed the plaintiff was ignorant of something having a bearing upon the liability of the newly-summoned party.” (Id. at p. 445.) The Court noted “the action sought damages for negligent ‘entrusting, permitting, managing, maintaining, servicing, repairing, inspecting, operating, and driving’ a motor vehicle. Plaintiff concedes that within minutes after the accident, she knew that Thomas was the operator of the vehicle which had collided with hers, and that she so informed the attorney whom she employed in July 1975.” (Id.) Miller’s counsel did not deny he knew Thomas was the operator of the vehicle and did not, nor could he, say he did not know Thomas was legally responsible for his driving. (Id.) The Court noted that “[t]he attorneys emphasis on his belief that the City could be held liable is no more than an affirmation of his tactical choice, i. e., to proceed against the City only. The attorney’s declaration can only be read as an admission that he had purposefully elected not to join Thomas as a defendant.” (Id.) The Court also noted the City’s answer showed it was

not admitting Thomas was acting within the course and scope of his employment.

(Id. at p. 446) The Court also stated “[i]t is not contended that the

attorney who drafted and signed the complaint or either of his successors ever

learned anything about Thomas which that attorney did not know when he drafted

the original complaint” but instead Miller and her counsels learned the City

would require Miller to prove a fact that was part of her burden since Miller

filed the complaint. (Id.) The Court affirmed the trial court’s

dismissal of the action as to Thomas. (Id. at pp. 442, 446.)

In

Parker, *supra*, 3 Cal.App.4th at pp. 513-514, the plaintiff John E.

Parker was a security guard. Parker was injured in a fall. (Id. at p.

514.) Parker filed a complaint alleging certain named defendants and Does 1 to

10 “negligently allowed debris to accumulate on a stairs which was negligently

built without an adequate guardrail, causing plaintiff to fall.” (Id.)

Robert E. McKee, Inc. (“McKee”) was a named defendant in the original

complaint. (Id.) Parker subsequently filed a voluntary request for

dismissal as to McKee and the dismissal was entered. (Id.) The dismissal

was allegedly due to Parker being unable to local McKee for service of process.

(Id. at pp. 514-515.) Later, Parker filed an amendment to complaint

naming “ROBERT McKEE” as Doe 1. (Id. at p. 515.) McKee demurred to the

amended complaint, arguing it was barred by the statute of limitations and

Parker was not ignorant of McKee's name when he filed the original complaint. (Id.)

In opposition, Parker's counsel submitted a declaration stating that when he

filed the original complaint, he knew McKee was one of the contractors, but

later discovered McKee was the general contractor on the project. (Id.)

Parker argued "his initial ignorance of respondent's status as general

contractor constituted ignorance of facts giving him a cause of action against

respondent, and the belated discovery entitled appellant to use the Doe

procedure to bring respondent back into the suit after the statute of

limitations had run." (Id.) McKee argued his status as a general

contractor did not change the nature of its liability. (Id.) The trial

court sustained McKee's demurrer without leave to amend. (Id.)

The Court of Appeal noted that "[a]mendment has

been allowed in numerous situations where the plaintiff knew the name of the

defendant but did not know the capacity in which the defendant acted." (Id. at p. 516.) The Court stated that "the explanation offered by [Parker]

showed that when the original complaint was filed [Parker] was unaware

respondent was the general contractor rather than merely one of numerous

subcontractors." (Id.) The Court then concluded that "the previously unknown fact [McKee]

was the general contractor provides a proper new factual basis

for a cause of action. If a general contractor has control over the premises

and has knowledge that the negligence of a subcontractor has created a condition dangerous for third persons who foreseeably may come onto the premises, the general contractor may be liable, even though the hazard was created by a subcontractor." (Id. at pp. 516-517, original italics.) The Court cited Miller, supra, 121 Cal.App.3d at pp. 445 as not closely analogous and distinguishable, noting it involved a "deliberate tactical choice to sue the city only, as employer, and not to sue the employee individually." (Id. at p. 517.) The Court reversed the dismissal. (Id. at p. 518.)

Defendant argues Miller, supra, 121 Cal.App.3d at pp. 444-445 is applicable here because Plaintiff made the tactical decision to proceed against Dr. Kamangar only and "Plaintiff's counsel purposefully elected not to join [Defendant] as a defendant from the outset of this case." (Motion pp. 10-11.) Defendant cites Plaintiff's discovery responses indicating she subsequently learned Dr. Kamangar was denying responsibility for Defendant's conduct. (Motion pp. 9-10.)

The court understands that Plaintiff's discovery responses indicate Plaintiff did not name Defendant as a named defendant in the original complaint because Plaintiff believed Dr. Kamangar was responsible for Defendant's actions. (Motion pp. 9-10.) This supports Defendant's argument that Miller, supra, 121 Cal.App.3d is controlling here because, on its face, omitting a defendant from the original complaint on the belief a different defendant would

be liable for the other defendant's actions appears to be a tactical decision.

In opposition, Plaintiff submits a declaration by

Plaintiff's counsel, William F. Flahavan, who states he was involved in

drafting the complaint. (William F. Flahavan Declaration ¶ 2.) William Flahavan

states: "I determined that Agoura Advanced Dentistry and Kambiz Kamangar were

the proper Defendants to be named in this litigation. Based upon the

information available, all other individuals providing dental services related

to this incident were in house employees of Agoura Advanced Dentistry working

under the supervision of Kambiz Kamangar."

(William F. Flahavan Declaration ¶ 2.) William

Flahavan further states:

After filing the complaint and after an answer to the complaint was

filed I had occasion to discuss this case with Jennie Hertzog of the firm Behar

Gibbs Savage Paulson LLP. In the course of that discussion I was informed for

the first time that [Defendant] was not an employee of Agoura Advanced

Dentistry but was hired by Kambiz Kamangar to place a crown on the subject

tooth, at the office of Agoura Advanced Dentistry.

(William F. Flahavan Declaration ¶ 3.) William

Flahavan amended the complaint to add Defendant as a Doe Defendant. (William

Flahavan Declaration ¶ 4.) William Flahavan confirmed Defendant's status as an

independent contractor through discovery responses received on September 4, 2024. (William Flahavan Declaration ¶ 4.)

Plaintiff also submits a declaration by Plaintiff's counsel Kevin P. Flahavan, who prepared the demand letter submitted by Defendant. (Kevin Flahavan Declaration ¶ 2.) Kevin Flahavan states: "[b]ased upon the information that was available to me at that time I understood that all of services provided to my client were performed at Agoura Advanced Dentistry's offices by staff acting under the supervision of Dr. Kamangar." (Kevin Flahavan Declaration ¶ 3.) Kevin Flahavan further states that when the complaint was filed, he understood Defendant "was a member of Agoura Advanced Dentistry staff" and it was "only after counsel for Kambiz Kamangar and Agoura Advanced Dentistry became involved in the litigation that I became aware that [Defendant's] potential status as an independent contractor. At that time this office promptly added [Defendant] as a Doe defendant." (Kevin Flahavan Declaration ¶ 4.)

Finally, Plaintiff submits a declaration stating:

"[a]ll of the services were provided at the offices of Agoura Advanced dentistry under the supervision of Kambiz Kamangar. I understood that all of the individuals performing services in relationship to the root canal procedure were employees of Agoura Advanced Dentistry." (Lund Declaration ¶ 4.)

Thus, Plaintiff submits evidence she named

Defendant as a Doe Defendant because she subsequently learned Defendant was an

independent contractor. The Court in Miller, supra, 121 Cal.App.3d at p. 446 noted that “[i]t is not contended that the

attorney who drafted and signed the complaint or either of his successors ever

learned anything about Thomas which that attorney did not know when he drafted

the original complaint.” The Court noted Miller’s burden remained the same and

“[t]his is not the kind of late discovery which is referred to in any of the

cases which have interpreted section 474.” (Id. at p. 446.) Here, in contrast to Miller, supra, 121 Cal.App.3d at p. 446, Plaintiff presents evidence she learned of a

new fact, that Defendant was an independent contractor. Like Parker,

supra, 3 Cal.App.4th at p. 516, where the Court concluded Miller’s

subsequently learning McKee was a general contractor, and not a contractor,

Plaintiff’s discovery Defendant was an independent contractor, and not an

employee, constitutes a previously unknown fact providing a proper new factual

basis. The court concludes this matter is distinguishable from Miller,

supra, 121 Cal.App.3d, and is factually closer to Parker, supra, 3 Cal.App.4th. Plaintiff meets her burden of showing there are triable

issues of material fact.

II.

CONCLUSION

For the foregoing reasons, the Motion is denied.

Dated: June 24, 2026 _____ Hon.

Eric Harmon

Judge of the Superior Court